

HOUSE No. 887

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to on-site sewage disposal systems.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 887

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 887) of James Arciero relative to on-site sewage disposal systems. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 741 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to on-site sewage disposal systems.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13 of chapter 21A of the Massachusetts General Laws, as
2 appearing in the 2012 official edition, is hereby amended by striking out the first paragraph and
3 inserting in place thereof the following paragraph:-

4 A board of health may adopt a local on-site sewage disposal systems regulation, only to
5 the extent that it imposes standards or other requirements that are more stringent than or
6 otherwise exceed those set forth in Title 5 of the State Environmental Code, 310 CMR 15.000,
7 and only if, prior to adoption by the board of health, the Department of Environmental Protection
8 shall review and approve any such proposed on-site sewage disposal systems regulation based
9 upon findings that the proposed regulation has a generally recognized scientific basis, is a
10 recommended best practice technique, is necessary to protect unusual local resources that

warrant special or enhanced protection, and does not conflict with Title 5 of the State Environmental Code, 310 CMR 15.000. An appeal of a decision made under a local wetlands ordinance or by-law shall be made to the Department of Environmental Protection in accordance with the Wetlands Protection Act (G.L. Ch. 131 § 40) and regulations (310 CMR 10.00) thereunder.

SECTION 2. The first paragraph of Section 31 of chapter 111, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-

A board of health may adopt local on-site sewage disposal systems regulations that contain standards or other requirements that are more stringent than or otherwise exceed those set forth in Title 5 of the State Environmental Code, 310 CMR 15.000, only if, prior to adoption by the board of health, the Department of Environmental Protection shall review and approve any such proposed on-site sewage disposal systems regulation based upon findings that the proposed regulation has a generally recognized scientific basis, is a recommended best practice technique, is necessary to protect unusual local resources that warrant special or enhanced protection, and does not conflict with Title 5 of the State Environmental Code, 310 CMR 15.000.